

SENATE BILL 728

By Lowe

AN ACT to amend Tennessee Code Annotated, Title 55,
relative to utility terrain vehicles.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 55-8-185, is amended by deleting the section and substituting instead the following:

(a) For the purposes of this section, "utility terrain vehicle" means:

- (1) A low speed vehicle;
- (2) A medium speed vehicle;
- (3) A Class I off-highway vehicle;
- (4) A Class II off-highway vehicle; or
- (5) An all-terrain vehicle.

(b) In order to operate a utility terrain vehicle under this section:

(1) The utility terrain vehicle must be titled and registered in accordance with chapters 3 and 4 of this title;

(2) The utility terrain vehicle must be covered by a liability policy that meets the requirements of the financial responsibility law in chapter 12, part 1 of this title;

(3) The operator must be sixteen (16) years of age or older;

(4) The operator must possess a valid driver license, which does not include a permit;

(5) The operator and all passengers must be wearing a helmet that meets the requirements of § 55-9-302(a)(1)-(4), unless exempted under § 55-9-302(b);

(6) The utility terrain vehicle cannot be transporting any passenger that requires a child passenger restraint system as required in § 55-9-602;

(7) The utility terrain vehicle must be operated only during daylight hours, which includes the thirty (30) minutes before dawn and the thirty (30) minutes after dusk, unless otherwise specified in this section; and

(8)

(A) If the utility terrain vehicle is equipped with any of the following from the manufacturer, or added later, then they must be operational and utilized at all times while operating the vehicle:

(i) Brakes;

(ii) At least two (2) taillights, stoplights, and headlights;

(iii) Two (2) turn signal lamps or other devices meeting the requirements of § 55-8-144;

(iv) A horn meeting the requirements of § 55-9-201;

(v) A roll bar;

(vi) Seat belts for each seat;

(vii) A manufacturer-installed or equivalent spark arrester;

(viii) A manufacturer-installed or equivalent muffler in proper working order and properly connected to the vehicle's exhaust system; and

(ix) A windshield, with or without wipers, except, that if the vehicle is not equipped with a windshield, then the operator and

each passenger shall wear glasses containing impact-resistant lenses, safety goggles, or a face shield;

(B) Operation of the following utility terrain vehicles are exempt from the registration requirements of chapter 4, part 7 of this title, and equipment and safety requirements of this section:

(i) A utility terrain vehicle operated on any private or public recreational trail or area;

(ii) A utility terrain vehicle operated on an affiliated trail or area operated by a person or entity which has in place a safety program;

(iii) A utility terrain vehicle operated for agricultural purposes; and

(iv) A publicly owned and operated utility terrain vehicle that is used for wildlife management, law enforcement, emergency services, or other such purposes;

(c)

(1) A utility terrain vehicle may be operated on any state highway or county road in the state where the speed limit is forty-five miles per hour (45 mph) or less, and is not:

(A) A part of the interstate and national defense highway system;

(B) A controlled access highway;

(C) Prohibited by a county or municipality on any road under its jurisdiction if the governing body of the county or municipality has determined that the prohibition is necessary in the interest of safety; or

(D) Prohibited by the department of transportation on any road under its jurisdiction if it has determined, in consultation with the department of safety, that the prohibition is necessary in the interest of safety.

(2) A utility terrain vehicle operated on county roads pursuant to subdivision (c)(1) may, for the purpose of crossing from one (1) road, field, or area of operation to another, be operated upon a state highway or other noncounty road with a speed limit in excess of forty-five miles per hour (45 mph), except upon the interstate and national defense highway system, if:

(A) On a two-lane highway, only to cross the highway at an angle of approximately ninety degrees (90°) to the direction of the roadway and at a place where a quick and safe crossing may be made;

(B) With respect to the crossing of a highway having more than two (2) lanes, or a highway having limited access, to cross these highways in a quick and safe manner at a place designated by the department of transportation or local government authorities, as applicable, as a place where such utility terrain vehicles may cross the highways and if the respective authorities erect appropriate signs of a type approved by the department, at the designated crossing places;

(C) The utility terrain vehicle is brought to a complete stop before crossing the shoulder or main traveled way of the highway;

(D) The operator yields the operator's right-of-way to all oncoming traffic that constitutes an immediate potential hazard; and

(E) Both the headlights and taillights, if equipped, are illuminated when the crossing is made.

(d) A utility terrain vehicle may be operated only at a rate not to exceed thirty-five miles per hour (35 mph).

(e) A person operating a utility terrain vehicle upon a county road pursuant to this section shall obey all of the duties applicable to the driver of a motor vehicle under part 1 of this chapter, and chapter 10, parts 1-5 of this title, except as to those provisions that by their nature can have no application.

(f) In addition to subsections (a)-(d), notwithstanding any law to the contrary, an all-terrain vehicle may be operated or driven upon any unpaved streets, roads, or highways, as designated specifically for such purpose upon two-thirds (2/3) vote by the local governing body, within the boundaries of an adventure tourism district established pursuant to title 11, chapter 11, part 2, if the all-terrain vehicle complies with the following:

(1) The all-terrain vehicle is specifically restricted to only between one-half (1/2) hour after sunrise and one-half (1/2) hour before sunset, and the headlight and taillight must be illuminated during such operation;

(2) The operator and all passengers of an all-terrain vehicle shall wear a helmet while driving or operating such vehicle on a street, road, or highway;

(3) Any additional safety requirements imposed by the local governing body for all-terrain vehicle operation on streets, roads, or highways in such jurisdiction; and

(4) An all-terrain vehicle must not be operated on any highway that is a part of the interstate and defense highway system.

(g) A violation of this section is a Class C misdemeanor, punishable by a fine only of fifty dollars (\$50.00).

SECTION 2. Tennessee Code Annotated, Section 55-8-203, is amended by deleting the section in its entirety.

SECTION 3. Tennessee Code Annotated, Section 55-8-191, is amended by deleting the section in its entirety.

SECTION 4. Tennessee Code Annotated, Section 55-1-125, is amended by deleting the language "pursuant to § 55-8-191(b)(1)".

SECTION 5. Tennessee Code Annotated, Section 55-8-101(38), is amended by deleting the language "pursuant to § 55-8-191(b)(1)".

SECTION 6. Tennessee Code Annotated, Section 55-50-102(37), is amended by deleting the language "pursuant to § 55-8-191(b)(1)".

SECTION 7. Tennessee Code Annotated, Section 55-3-101(d), is amended by deleting the language "§ 55-8-203" and substituting instead the language "§ 55-8-185".

SECTION 8. This act takes effect July 1, 2025, the public welfare requiring it.